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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 31, 2026

CASE NUMBER

26SMCV00786

MOTIONS

Demurrer and Motion to Strike Portions of First Amended Complaint

MOVING PARTY

Defendant Restore Health and Wellness Center LLC

OPPOSING PARTIES

Plaintiffs Billy Hogue and Caseyann Virginia Cota

MOTIONS

This case arises from a dispute concerning the quality of care provided to Plaintiff Billy Hogue ("Hogue") while he was admitted at Defendant Restore Health and Wellness Center LLC's ("Defendant" or "Restore") alcohol treatment facility.

The operative First Amended Complaint ("FAC") brought by Plaintiffs Billy Hogue and Caseyann Virginia Cota ("Plaintiffs") against Defendant Restore Health and Wellness Center LLC ("Defendant") alleges four causes of action for (1) negligence; (2) negligent hiring, supervision, and retention; (3) dependent adult abuse/neglect/abandonment; and (4) loss of consortium.

Defendant now demurs to the third cause of action for failure to state facts sufficient to constitute a cause of action and for uncertainty, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), respectively. Defendant also moves to strike allegations pertaining to treble/punitive/enhanced damages.

Plaintiffs oppose both the motion and demurrer, and Defendant replies.

REQUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of the following:

Exhibit A: This Court's Tentative Ruling on Defendant's Demurrer and Motion to Strike Portions of the Complaint, dated June 11, 2026.

Exhibit B: This Court's Minute Order dated June 11, 2026, adopting the tentative ruling as the final order of the Court, as modified on the record, sustaining the demurrer to the dependent adult abuse cause of action and granting the motion to strike treble, enhanced, and punitive damages allegations, with leave to amend.

Exhibit C: Plaintiff's First Amended Complaint filed in this matter on July 13, 2026

Exhibit D: State of California, Department of Health Care Services ("DHCS") License No. 190858FP, issued to Restore Health and Wellness Center, LLC, effective January 1, 2025 through December 31, 2026, licensing Restore "to operate and maintain a non-medical adult residential alcohol and/or drug program" at 4315 & 4323 Coolidge Avenue and 4320 & 4324 McLaughlin Avenue, Los Angeles, California 90066, and extending to "detoxification, incidental medical services, recovery and treatment services" with DHCS provisional level-of-care designations 3.1, 3.2, 3.3, and 3.5.

With regard to Exhibits A-C, judicial

notice may be taken of records of any court in this state. (Evid. Code, § 452, subd. (d)(1).) Because these documents are all part of the Court's

record for this case, the Court may take judicial notice of them. (Ibid.) However, "while courts are free to take

judicial notice of the existence of each document in a court file, including

the truth of results reached, they may not take judicial notice of the truth of

hearsay statements in decisions and court files. Courts may not take judicial notice of

allegations in affidavits, declarations and probation reports in court records

because such matters are reasonably subject to dispute and therefore require

formal proof." (Lockley v. Law Office

of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875,

882 [cleaned up].)

Accordingly, the Court takes

judicial notice of the existence, filing, and legal consequences of the above

documents filed in this matter as court records, but not the truth of the

allegations or other hearsay statements contained therein.

Regarding Exhibit D, judicial

notice may also be taken of "[o]fficial acts of the legislative, executive, and

judicial departments of [...] any state of the United States."

Therefore, the Court similarly

takes judicial notice of the existence and legal consequences of Exhibit D, but

not the absolute truth of any hearsay statements contained therein.

ANALYSIS

1.

DEMURRER

“It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts “[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (290 Division (EAT), LLC v. City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 [“in considering the merits of a demurrer, however, “the facts alleged in the pleading are deemed to be true, however improbable they may be”].)

Further, in ruling on a demurrer, a court must “liberally construe” the allegations of the complaint “with a view to substantial justice between the parties.” (See Code Civ. Proc., § 452.) “This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant.” (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

In summary, “[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

A. UNCERTAINTY

“[D]emurrers for uncertainty are disfavored.” (Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.) “A demurrer for uncertainty will be sustained only where the pleading is so bad that the responding party cannot

reasonably respond - i.e., [a party] cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against [the party]." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 7:85, p. 45, emphasis in original.)

As such, where a demurrer is made upon the ground of uncertainty, the demurrer must distinctly specify exactly how or why the pleading is uncertain, and where such uncertainty appears by reference to page and line numbers. (See *Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809 ["Generally, the failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty"].)

Here, Defendant demurs for uncertainty on the grounds that the FAC appears to contain internally inconsistent names and pronouns carried over from a prior pleading.

While the Court agrees that Plaintiffs' use of the plural "Defendants" when there is only one named Defendant is slightly confusing, and the Court does not fully understand what Plaintiffs mean by "RESTORE damages," the Court cannot say the FAC is so bad that Defendant cannot reasonably discern what must be admitted or denied or what claims are asserted against it.

Therefore, the Court declines to sustain the demurrer on the ground of uncertainty.

B.

FAILURE TO STATE A CAUSE OF ACTION

i.

Third Cause
of Action – Dependent Adult Abuse/Neglect/Abandonment

The Elder Abuse Act defines "Abuse of an elder or a dependent adult" as

(1) Physical abuse, neglect, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering.

(2) The deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering.

(3) Financial abuse, as defined in Section 15610.30.

(Welf. & Inst. Code, § 15610.07, subd. (a).)

Under the Elder Abuse Act, “neglect” means “[t]he negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise” and includes: “(1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter.

(2) Failure to provide medical care for physical and mental health needs

[...] (3) Failure to protect from health and safety hazards [...]” (Welf. & Inst. Code, § 15610.57.) “[T]he facts constituting the neglect and

establishing the causal link between the neglect and the injury must be pleaded with particularity.” (Carter v. Prime

Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 407 (hereafter Carter).)[1]

To prevail on a claim for neglect under the Elder Abuse Act, “The plaintiff must allege (and ultimately prove by clear and convincing evidence) facts establishing that the defendant: (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult’s basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness).” (Carter, *supra*, 198 Cal.App.4th at pp. 406–407 [citations omitted].) “The plaintiff must also allege (and ultimately prove by clear and convincing evidence) that the neglect caused the elder or dependent adult to suffer physical harm, pain or mental suffering.” (Id. at p. 407.)

Here, Plaintiffs allege:

7. On information and belief, RESTORE HEALTH AND WELLNESS CENTER LLC, is a California LLC ("RESTORE"). RESTORE purports to provide non-medical substance abuse treatment services, which are supposed to include supervision, safety, security, and support. RESTORE's facilities purportedly provide IOP and Sober Living home services as well as 24 hour adult residential substance abuse treatment. PLAINTIFF is informed and believes, and thereupon alleges, that RESTORE is not licensed or certified pursuant to Division 2 (commencing with Section 500) of the Business and Professions Code, or licensed pursuant to the Osteopathic Initiative Act, or the Chiropractic Initiative Act, or licensed pursuant to Chapter 2.5 (commencing with Section 1440) of Division 2 of the Health and Safety Code. PLAINTIFFS are informed and believe, and thereupon allege, that RESTORE is not a clinic, health dispensary, or health facility, licensed pursuant to Division 2 (commencing with Section 1200) of the Health and Safety Code.

8. On information and belief, RESTORE did not hold any licenses and/or failed to comply with the requirements and regulations set forth under Title 22 of the California Code of Regulations and/or Division 10.5 of California's Health and Safety Code or any other laws and regulations governing substance use disorder treatment centers.

12. The gravamen of this case arises out of DEFENDANT's failure to provide qualified care and custody to BILLY when he was at his most vulnerable and when he was utterly dependent on RESTORE and in need of the support and protection they promised to provide. The gravamen of this case sounds in custodial negligence whereby BILLY, a dependent adult, was the victim of unqualified custodial care and supervision ultimately and wrongfully causing PLAINTIFFS to suffer significant economic and non-economic harms.

13. BILLY was admitted to RESTORE's residential treatment facility located at 4135 Coolridge Ave, Los Angeles, CA 90066, on or around October 12, 2025.

14. On or around October 15, 2025, BILLY requested medical attention for increasing pain in his foot and leg. RESTORE transported BILLY to Cedars,

where he was evaluated, prescribed antibiotics, and discharged back to RESTORE. Upon discharge from Cedars, the wound on

BILLY's foot was about the size of a dime.

15. Clients like BILLY are not allowed to possess their medications while at the RESTORE facility. RESTORE staff members impound and take custody of the medication, and assume the duty and responsibility of administering the medications according to the medication orders. RESTORE neglected BILLY and failed to administer his prescribed antibiotics for two full days, during which time BILLY was bedridden with little to no food or water.

16. By October 19, 2025, BILLY's health had severely declined and he was in extreme pain as his body was fighting a severe infection. BILLY was vomiting large quantities of pink bodily contents. RESTORE knew of this but did nothing to help. RESTORE did not properly follow doctor's orders or check the condition of BILLY's foot wound to assess if BILLY would need to be transferred to a medical facility to receive medical care. Other residents at the facility began rendering aid and assistance to BILLY.

17. On or around October 19, 2025, BILLY contacted his wife CASEYANN asking for help to get him out of the facility. RESTORE's staff members falsely told CASEYANN that BILLY wanted to leave to use alcohol.

18. When CASEYANN arrived at RESTORE on or around October 19, 2025, BILLY appeared 10-15 lbs lighter and looked pale, slumped over, exhausted, and extremely sick. No one from RESTORE contacted CASEYANN or informed her of her husband's medical issues even though CASEYANN was listed as the emergency contact.

19. Upon arriving at home CASEYANN removed BILLY's socks and saw the severe life-threatening infection on his foot. CASEYANN rushed BILLY to Olive View Hospital where they soon learned the horrible truth, that because of RESTORE's neglect, abandonment, and abuse, BILLY would have to amputate his foot. BILLY has since undergone a partial amputation and continued to need substantial care and assistance on a permanent basis moving forward. BILLY has incurred and will continue to incur substantial economic damages including, but not limited to, medical expenses, lost earnings, and lost earnings capacity. He has experienced, and continues to experience, a tremendous amount of non-economic damages including emotional

distress which now persists on an ongoing basis which includes, but is not limited to, a significant level of pain and suffering and loss of enjoyment of life.

20. RESTORE's actions not only constitute negligence, but also dependent adult neglect and abandonment. RESTORE failed to send BILLY to a healthcare provider who could provide medical care for physical and mental health needs. RESTORE failed to protect BILLY from health and safety hazards. RESTORE failed to prevent BILLY'S malnutrition or dehydration. BILLY was unable to satisfy these needs because he was suffering from substance use disorder.

23. Dr. Charles Carpenter is RESTORE's Medical Director. RESTORE is a nonmedical facility, so Dr. Carpenter's role as Medical Director involves overseeing RESTORE's incidental medical services, which is defined by Health and Safety Code Section 11834.026 as including "monitoring health status [of residents] to determine whether health status warrants transfer of the patient in order to receive urgent or emergent care." At all times relevant herein, Mr. Tophia knew about BILLY's status and treatment needs, and personally oversaw and directed staff members on how to handle BILLY's incidental medical services at RESTORE.

24. Aliza Vayngurt is RESTORE's CADC-II Executive Director. Ms. Vayngurt's role as Executive Director involves, among other things, overseeing all departments, ensuring compliance, and providing guidance across the organization. Ms. Vayngurt is responsible for hiring, supervising, and retaining the employees who provided treatment to BILLY at RESTORE.

25. Thomas Tophia is RESTORE's AMFT, CADC-II, M.A. Program Director. As Program Director, Mr. Tophia is responsible for overseeing the treatment environment. Mr. Tophia is responsible for actively reviewing resident files to become knowledgeable regarding treatment needs and services. Mr. Tophia is also responsible for hiring, supervising, and retaining the employees who provided treatment to BILLY at RESTORE. At all times relevant herein, Mr. Tophia knew about BILLY's status and treatment needs, and personally oversaw and directed staff members on how to handle BILLY's treatment and residency at RESTORE.

26. Nicole Prescott is RESTORE's CADC-II Client Services Liaison. Ms. Prescott is responsible for understanding resident

needs and coordinating services. Ms. Prescott is responsible for actively reviewing resident files to become knowledgeable regarding treatment needs and services. Ms. Prescott is also responsible for hiring, supervising, and retaining the employees who provided treatment to BILLY at RESTORE. At all times relevant herein, Ms. Prescott knew about BILLY's status and treatment needs, and personally oversaw and directed staff members on how to handle BILLY's treatment and residency at RESTORE.

27. BILLY began receiving substance use disorder treatment from DEFENDANT on or around October 12, 2025. Upon admission to RESTORE, as a condition of his residence, BILLY surrendered his prescribed medications to RESTORE and agreed to surrender any future prescribed medications to RESTORE, who would then oversee BILLY's consumption of medication thereafter.

28. On October 12, 2025, as part of the admissions contract, the signing of which was a condition of BILLY's admission for substance use disorder treatment, RESTORE guaranteed BILLY the right to be accorded safe, healthful, and comfortable accommodations to meet his or her needs, among other things, in accordance with Title 9, Chapter 5, Section 10569, of the California Code of Regulations. The contract also states that RESTORE Staff would oversee the administration of medications and that RESTORE would provide assistance in accessing emergency medical services. RESTORE Staff Member Mayra Torres presided over BILLY's execution of the admissions agreement.

29. On October 12, 2025, as part of the admission process, RESTORE, by and through staff member Alyson Carpenter, required BILLY to complete a health questionnaire during which RESTORE learned that BILLY had a blood clot in his left leg that was being treated with a blood thinner.

30. Beginning October 12, 2025, BILLY was supposed to be under heightened supervision due to being the detox phase of treatment, which many consider to be the most dangerous and vulnerable period of recovery. During this time, BILLY experienced acute withdrawal symptoms and suffered from physical and mental limitations, including decision making and reasonable self-care judgment, as his body flushed the substances and his mind's receptors reconfigured.

31. On October 14, 2025, RESTORE Staff AMFT

Katie Sy performed a Bio – Psychosocial Assessment for BILLY which was reviewed by Program Director Thomas Tophie, wherein RESTORE documented that BILLY had “extreme impairment across multiple life domains, including medical, social, family, and substance abuse areas...” According to this assessment, BILLY “currently experiences post-acute withdrawal syndrome (PAWS) symptoms, including irritability, anxiety, sleep disturbances, difficult concentrating , and mood instability. Alcohol use has negatively affected his physical health, emotional well-being, relationships, and occupational functioning.” BILLY presented with “agitation, elevated pulse, nausea, dizziness, anxiety, and restlessness.” BILLY presented with “co-occurring medical conditions, including Type 2 diabetes, suspected edema, poor nutrition, and overall physical decline related to chronic alcohol use...” BILLY experiences “depression, anxiety, emotional dysregulation and... poor coping skills, limited insight, and difficult managing stress...” According to RESTORE’s own assessment, BILLY’S “substance use has significantly impaired his psychosocial functioning...” These assessments were accessible to, shared between, and reviewed by RESTORE staff members who were treating BILLY while he resided at RESTORE, including but not limited to, the Medical Director, Executive Director, Program Director, and Client Services Liaison, and utilized in developing and administering BILLY’s treatment plan, which was reviewed and authorized by Aliza Vayngurt.

32. On October 14, 2025, Asli Taylan, SUDCC,

and Nicole Prescott, CADC-II, oversaw and signed the Group Sessions assessment, wherein RESTORE purports to make a plan to monitor BILLY’s medical concerns and refer him to nursing and/or outside medical care for medical stabilization.

33. On October 15, 2025, BILLY requested medical aid and was sent to the emergency room at Cedars Sinai, where his foot was evaluated, treated, and stabilized before BILLY was discharged back into RESTORE’s care and custody with discharge paperwork, including new medications and monitoring instructions, all of which was received, reviewed, and documented by RESTORE LVN Isabella Olivares and RESTORE’s Medical Director, Program Director, and Client Services Liaison. Program Director Thomas Tophia failed to create a new treatment plan and/or modify the treatment plan to reasonably and appropriately inform staff members of any additional information needed regarding the manner in which BILLY’s treatment episode should be handled. Moreover, upon learning of BILLY’s condition and status post hospital visit, and deteriorating condition thereafter, the Executive Director, Program Director, and Client Liaison failed to inform the Medical Director and/or the

Medical Director independently failed to check up on BILLY's condition to perform the incidental medical service of referring him to a healthcare facility.

34. Between October 12, 2025 and October 18, 2025, RESTORE Staff Members Isabella Olivares, Mark Sprague, Billie Davis, Crystal Peoples, Laura Aleman, Zachary Sewalk, and/or Emily Bruce observed BILLY in distress but noted that BILLY refused medical care and/or did not take all of his prescribed medications. None of these staff members contacted BILLY's wife CASEYANN VIRGINIA COTA to report BILLY's emergency medical situation. Again, the Executive Director, Program Director, and Client Liaison either failed to inform the Medical Director or the Medical Director independently failed to check up on BILLY's condition to perform the incidental medical service of referring him to a healthcare facility.

35. At 8:14 a.m. on October 17, 2025, BILLY was observed vomiting a large pink mass, but the RESTORE file claims he refused to go to urgent care. At 5:32 pm that same day, CASEYANN VIRGINIA COTA contacted Client Liaison Nicole Prescott to schedule a visit so that she could check on BILLY's status post hospital. Ms. Prescott made no mention of the incident that happened earlier that morning with BILLY.

36. On October 19, 2025, BILLY presented to a group session with a fatigued affect and reported emerging symptoms including nausea. By this point in time, BILLY had been observed vomiting on several occasions. Other residents had to help BILLY move around the property because he couldn't ambulate on his own. RESTORE was short staffed and failed to attend to BILLY's needs.

37. As of October 19, 2025, BILLY was only one week into his treatment plan and has been prescribed, and was taking, over a dozen medications, many of which included sedative compounds and/or psychotropics used for substance use disorder treatment which helped battle withdrawals and symptoms caused by detox but also limited BILLY's ability to function, care for himself, and carry out major life activities independently.

38. On October 19, 2025, RESTORE's treatment file claims that: "Client is being asked to go to the urgent care of the hospital for follow up as outlined in hospital discharge paperwork dated 10/15. Client has refused and will not cooperate with attempts to transfer. Nicole has been advised and will seek

the help of client's wife in getting the client to comply." But by this point, it was too late. BILLY was suffering from a serious infection that further restricted his functionality, and he was in a life-threatening situation. BILLY was clearly in a state of physical and mental distress and did not have the ability or capacity or judgment to carry out life functions independently, including making sound medical decisions. His substance use disorder, combined with his diabetes, and the need for helping managing his wound care rendered him a dependent adult, and RESTORE failed to provide for his basic needs.

39. Despite knowing of BILLY's deteriorating condition for days and diminished inhibitions, RESTORE's Medical Director, Program Director, Executive Director, and/or Client Services Liaison failed to reasonably and timely inform BILLY's wife CASEYANN VIRGINIA COTA of the emerging medical situation. CASEYANN VIRGINIA COTA was listed as his emergency contact and authorized to receive emergency medical information regarding BILLY.

40. RESTORE's Medical Director, Program Director, Executive Director, and/or Client Services Liaison, and the staff under their supervision, never physically checked or observed the status of BILLY's foot. Despite RESTORE's knowledge of BILLY's limited decision-making capacity in the detox phase of addiction treatment experiencing withdrawals and other physical and mental limitations, RESTORE neglected BILLY's life-threatening needs. These staff members were hired, supervised, and retained by RESTORE's Medical Director, Program Director, Executive Director, and/or Client Services Liaison, all of whom knew or should have known about their staff's unqualified treatment of BILLY. RESTORE's Medical Director, Program Director, Executive Director, and/or Client Services Liaison also directly guided and instructed RESTORE staff on how to handle BILLY's treatment.

53. PLAINTIFF brings this cause of action under Welf. & Inst. Code Sections 15610 et seq. and 15657, et seq. On information and belief, PLAINTIFF was neglected, abandoned, and abused by DEFENDANTS in violation of the Elder Abuse and Dependent Adult Civil Protection Act.

54. DEFENDANTS had a duty to PLAINTIFF and the public to be properly licensed and to institute their practices according to industry standards and/or regulations. DEFENDANTS, and each of them, owed PLAINTIFF a duty to provide her with adequate care, safety, security, and proper supervision/monitoring. DEFENDANTS knew or should have known that their

failure to adequately care for and supervise PLAINTIFF would result in serious harm and injury to PLAINTIFF.

55. DEFENDANTS and each of them, at all times relevant to this matter, had care, control, and/or custody of PLAINTIFF. DEFENDANTS and each of them, at all times relevant to this matter, had control over RESTORE. DEFENDANTS' failure to adequately care for, properly supervise, and monitor PLAINTIFF constitutes negligence and a glaring departure from accepted standards of care in the non-medical residential program industry. DEFENDANTS' failure to adequately control, maintain, and operate RESTORE constitutes negligence and a glaring departure from accepted standards of care in the non-medical residential program industry. DEFENDANTS' failure to take reasonable steps to avoid foreseeable harm to PLAINTIFF constitutes negligence and a glaring departure from accepted standards of care in the industry. DEFENDANTS knew or should have known that their respective facilities created a substantial risk of harm to PLAINTIFF, but DEFENDANTS failed to take reasonable steps to protect residents like PLAINTIFF from harm. DEFENDANTS' staff members were insufficiently trained, and DEFENDANTS negligently hired, supervised, and retained employees who were unfit and/or incompetent to reasonably perform the work for which they were hired. DEFENDANTS did not have proper policies and procedures in place to care for dependent adults and/or ensure that such individuals, including PLAINTIFF, were properly transferred and/or admitted to qualified licensed facilities. DEFENDANTS failed to act reasonably to keep PLAINTIFF safe and secure. To the extent any reasonable policies or procedures did exist, DEFENDANTS failed to properly follow such policies and procedures.

56. DEFENDANTS had a duty of care to be licensed and qualified to do business in the manner required to provide the services it represented it would provide to PLAINTIFF. DEFENDANTS failed to create adequate policies, practices and procedures for the safety, supervision and security of clients like PLAINTIFF.

57. DEFENDANTS owed PLAINTIFF a duty to provide him with adequate care and proper supervision and monitoring. DEFENDANTS knew or should have known that its failure to adequately care for and supervise PLAINTIFF would result in serious harm and injury to PLAINTIFF.

58. DEFENDANTS are a non-medical facility that breached their duty of care to PLAINTIFF. DEFENDANTS did not have the necessary licensing or qualifications to take PLAINTIFF on as a client. To the

extent DEFENDANTS did have licensing; they were in violation of their license and the applicable statutes and regulations and negligently operated outside the scope of their license. DEFENDANTS knew or should have known that their lack of proper licensing and qualifications would put PLAINTIFF at an unreasonable risk of injury.

59. DEFENDANTS and each of them knew, or should have known, that their actions and inactions, and those of their employees, agents, officers, executives, directors or contractors, in general with respect to, their interactions with residents and clients, and in particular in their interactions with PLAINTIFF, were inadequate, unreasonable, and were negligent. Despite this foreseeability and actual and/or constructive knowledge, DEFENDANTS did little or nothing to alleviate the situation or to enact and implement reasonable policies and processes and undertake more effective practices and actions to prevent those occurrences.

60. All of the foregoing acts and omissions constitute careless, reckless, and negligent conduct by DEFENDANTS and each of them. DEFENDANTS' acts and omissions as alleged herein above constituted a breach of DEFENDANTS' duty of care.

61. On information and belief, DEFENDANTS had a substantial caretaking and/or custodial relationship with PLAINTIFF, involving ongoing responsibility for her basic needs, which an able-bodied and fully competent adult would ordinarily be capable of managing without assistance. DEFENDANTS and each of them, at all times relevant to this matter, had care, control, and/or custody of PLAINTIFF. DEFENDANTS offered PLAINTIFF care, custody, and control in exchange for substantial compensation. DEFENDANTS purportedly provide services to clients like PLAINTIFF, who cannot care for themselves due to alcohol abuse, and who pay for protection subject to DEFENDANTS' care, custody and/or control. At all times relevant to this action, DEFENDANTS and each of them were care custodians within the meaning of California Welfare & Institutions Code section 15610.17.

62. On information and belief, PLAINTIFF was a dependent adult while she was in DEFENDANTS' care and/or custody. At all times relevant herein PLAINTIFF was between the ages of 18 and 64 and suffered from substance use disorder and had physical and/or mental limitations that restricted his ability to carry out normal activities or to protect his rights. Because of these physical and/or mental limitations, PLAINTIFF was admitted as

a resident at RESTORE. PLAINTIFF suffered from substance use disorder which impaired his motor functioning and judgment, and interfered with his decision-making and problem-solving abilities while reducing his inhibitions and causing severe physical and psychological symptoms from withdrawals causing further limitation. PLAINTIFF's condition restricted his ability to carry out normal daily activities including, but not limited, refraining from abusing drugs, eating, sleeping, working, interacting with others, and exercising, which made him a danger to himself. DEFENDANTS knew or should have known of PLAINTIFF's physical and mental limitations.

63. On information and belief, DEFENDANTS failed to use the degree of care that a reasonable person in the same situation would have used in providing for PLAINTIFF's basic needs, as alleged in greater detail throughout this Complaint, including administering services for PLAINTIFF's substance abuse treatment and protecting PLAINTIFF from health and safety hazards. DEFENDANTS failed to adequately care for, properly supervise, and monitor PLAINTIFF. DEFENDANTS failed to adequately control, maintain, and operate RESTORE. DEFENDANTS failed to transfer PLAINTIFF to an appropriate, licensed, and qualified facility. DEFENDANTS' staff members were insufficiently trained, and DEFENDANTS negligently hired, supervised, and retained employees who were unfit and/or incompetent to reasonably perform the work for which they were hired. RESTORE was not licensed to provide the type of substance abuse treatment services that PLAINTIFF required. DEFENDANTS did not have proper policies and procedures in place to care for dependent adults suffering from alcohol abuse and/or ensure that such individuals, including PLAINTIFF, were properly transferred and/or admitted to qualified licensed facilities. To the extent any reasonable policies or procedures did exist, DEFENDANTS failed to properly follow such policies and procedures. DEFENDANTS failed to create adequate policies, practices and procedures for the safety, supervision and security of clients like PLAINTIFF. None of DEFENDANTS' non-medical staff members were trained on how to properly care for dependent adults like PLAINTIFF. DEFENDANTS' non-medical non-licensed staff failed to follow PLAINTIFF's care plan and medication orders. As a non-medical facility, DEFENDANTS were not equipped, qualified, or authorized to provide PLAINTIFF the care and treatment she needed.

64. As aforementioned in detail, the actions and inactions of DEFENDANTS and each of them comprised neglect and abandonment within the meaning of Welfare & Institutions Code section 15610.57. DEFENDANTS and each of them, having responsibility for attending to the basic

needs and comforts of dependent adults such as PLAINTIFF, failed to do so, and failed to carry out their custodial obligations under the Act. DEFENDANTS abandoned PLAINTIFF by willfully deserting and/or forsaking him under circumstances in which a reasonable person would have continued to provide care and custody. DEFENDANTS left PLAINTIFF without means of obtaining necessary, food, clothing, shelter, and/or medical care.

65. DEFENDANTS' conduct, acts and omission, was a substantial factor in causing PLAINTIFFS' harm and injuries, in an amount to be proven at the time of trial. As a direct, foreseeable, and proximate result of DEFENDANTS' conduct as alleged herein, PLAINTIFF has suffered and will continue to suffer economic and non-economic damages, in a sum in excess of the jurisdictional limit of this Court, the exact amount of which is not yet known, which amount will be proven at the time of trial. PLAINTIFF claims such amounts as damages together with costs and prejudgment interest pursuant to any provision of law providing for costs and prejudgment interest.

66. PLAINTIFF also seeks to recover treble damages, RESTORE damages, punitive damages, attorneys' fees and costs. On information and belief, DEFENDANTS acted with recklessness, oppression, fraud, and/or malice in neglecting and abusing PLAINTIFF, thereby warranting such RESTORE damages. On information and belief, DEFENDANTS knew it was highly probable that DEFENDANTS' conduct would cause harm to PLAINTIFF, but DEFENDANTS disregarded the risk. On information and belief, DEFENDANTS acted with intent to cause injury and/or DEFENDANTS' conduct was so despicable and was done with a willful and knowing disregard of the rights or safety of PLAINTIFF. DEFENDANTS' conduct was vile, base, or contemptible and would be looked down on and despised by reasonable people.

67. On information and belief, RESTORE and had advanced knowledge of the unfitness of RESTORE's staff and managing agents but employed such agents nevertheless with a knowing disregard of the rights and/or safety of others. Managing agents of RESTORE authorized, ratified, and/or otherwise adopted or approved the wrongful conduct alleged herein. On information and belief, managing agents of RESTORE committed independently wrongful acts as an officer and on behalf of RESTORE. On information and belief, one or more officers, directors, or managing agents of the DEFENDANTS, had advance knowledge of the unfitness of the employee or employees providing the care and services to PLAINTIFF and employed them with a knowing disregard of the rights or safety of others. The employees' conduct was authorized,

adopted, and/or ratified by one or more of the officers, directors, or managing agents of the DEFENDANTS.

68. On information and belief, DEFENDANTS

negligently and/or intentionally violated, encouraged and/or aided and abetted the violation of various statutes, rules, laws and/or regulations and are therefore liable to PLAINTIFFS under the doctrine of negligence per se. On information and belief, DEFENDANTS negligently and/or intentionally committed and/or assisted in the commission of violations of the requirements and regulations set forth under Titles 9 and 22 of the California Code of Regulations and/or Division 10.5 of California's Health and Safety Code. For example, Defendant must have a Facility Administrator who has "(A) Knowledge of the requirements for providing the type of alcoholism or drug abuse recovery or treatment services needed by residents. (B) Knowledge of and ability to comply with applicable law and regulations. (C) Ability to direct the work of others, when applicable. (D) Ability to develop and manage the facility's alcohol or drug abuse recovery or treatment services and budget. (E) Ability to recruit, employ, train, and evaluate qualified staff, and to terminate employment of staff, if applicable to the facility." Cal. Code Regs. Tit. 9, § 10564(a)(1).

On information and belief, DEFENDANT did not have a Facility Administrator who satisfied these requirements while BILLY was residing at DEFENDANT'S facility. As another example, DEFENDANT'S "Facility personnel including volunteers shall be competent to provide the services necessary to meet resident needs and shall be adequate in numbers necessary to meet such needs [and] [c]ompetence shall be demonstrated by accrued work, personal, and/or educational experience and/or on-the-job performance." Cal. Code Regs. Tit. 9, § 10564(b)(1). On information and belief, DEFENDANT'S facility personnel did not have the requisite competency required by Cal. Code Regs. Tit. 9, § 10564 et seq., while BILLY was residing at DEFENDANT'S facility. Subchapters 2 and 3 of Chapter 8 or Title 9, §§ 13010 – 13075, enumerates requirements for certification of Alcohol and Other Drug Counselors which, on information and belief, DEFENDANT's counselors did not satisfy while BILLY was residing at DEFENDANT'S facility. Cal. Code Regs. Tit. 9, § 10569 also guarantees each resident, including BILLY, the personal right "[t]o be accorded safe, healthful and comfortable accommodations to meet his or her needs.. [and] to be free from intellectual, emotional and/or physical abuse." On information and belief, DEFENDANT failed to provide BILLY with these guaranteed personal rights. Cal. Code Regs. Tit. 9, § 10572 states that DEFENDANT "shall ensure that residents receive necessary first aid and information about and/or referral to needed medical or dental services," which, as alleged herein, DEFENDANT completely failed to do. California Code, Health

and Safety Code - HSC § 11857.2 requires every treatment provider, including DEFENDANT to “adopt... a client bill of rights that ensures that persons receiving treatment for a substance use disorder have the right... to be treated for the life-threatening, chronic disease of substance use disorder with honesty, respect, and dignity, including privacy in treatment and in care of personal needs... [and] be treated by treatment providers with qualified staff... [and] to receive care in a treatment setting that is safe and ethical... [and] to be free from mental and physical abuse...” PLAINTIFFS allege that DEFENDANTS failed to adopt and/or provide these guaranteed rights to BILLY. The statutory and/or code violations proximately caused PLAINTIFF'S injuries and damages. The injuries and/or damages suffered resulted from the kind of occurrences and are within the scope of the harm that said statutes were designed to prevent. PLAINTIFF is a member of the class of persons that said statutes were intended to protect. As a direct and proximate result of these violations of law, PLAINTIFF suffered economic and non-economic that PLAINTIFF would not have incurred but for DEFENDANTS' actions, the exact amount of which is unknown to PLAINTIFF at this time, but subject to proof at time of trial. As a direct, foreseeable, and proximate result of DEFENDANTS' violations of law, in a sum in excess of the jurisdictional limit of this Court.

(FAC

¶¶ 7-8, 12-40, 53-68, emphasis added.)

Defendant argues that while these allegations may constitute medical negligence, which is the negligent provision of medical care, they do not rise to the level of dependent adult abuse, which is the failure to provide any such medical care. (See Carter, supra, 198 Cal.App.4th at pp. 404–405 [“the statutory definition of ‘neglect’ speaks not of the undertaking of medical services, but of the failure to provide medical care”], emphasis original.) The Court disagrees.

In liberally construing the allegations of the complaint “with a view to substantial justice between the parties” and drawing inferences favorable to Plaintiffs, not Defendant, Plaintiffs have alleged a sufficient claim under the Elder Abuse Act. In particular, the Court notes that the allegations in paragraphs 15, 16, 33, 35 and 36 establish (with the requisite specificity) that Defendant failed to provide medical care to Hogue. Moreover, Plaintiffs' allegations reasonably infer that Defendant and its staff are, and have been, untruthful about what they did

to care for Hogue between the two critical dates of October 15 and October 19, after Hogue was treated by Cedars, and in blaming Hogue for the deterioration of his health, including the infection. (See, e.g., FAC, ¶¶ 17, 34, 35 & 38.)

Therefore,
the Court overrules Defendant's demurrer to the third cause of action for Dependent Adult Abuse/Neglect/Abandonment.

2.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (*College Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code,

(1)

"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or

safety of others. (2) "Oppression" means

despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)-(3), emphasis added.)

Further, a plaintiff must

assert facts with specificity to support a conclusion that a defendant acted with oppression, fraud or malice. To

wit, there is a heightened pleading requirement regarding a claim for punitive damages. (See *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.)

"When nondeliberate injury is charged, allegations that the defendant's conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice. When a defendant must produce evidence in defense of an exemplary damage claim, fairness demands that he receive adequate notice of the kind of conduct charged against him." (*G. D. Searle & Co.*

v. Superior Court (1975) 49 Cal.App.3d 22, 29 [cleaned up].) In *Anschutz Entertainment Group, Inc. v.*

Snepp, the Court of Appeal noted that the plaintiffs' assertions related to their claim for punitive damages were "insufficient to meet the specific pleading requirement." (*Anschutz*

Entertainment Group, Inc. v. Snepp (2009) 171 Cal.App.4th 598, 643

[plaintiffs alleged "the conduct of Defendants was intentional, and done willfully, maliciously, with ill will towards Plaintiffs, and with conscious disregard for Plaintiff's rights. Plaintiff's injuries were exacerbated by the malicious conduct of Defendants. Defendants' conduct justifies an award of exemplary and punitive damages"]; see also *Grieves*

v. Superior Court (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim"].)

Moreover, "the imposition of

punitive damages upon a corporation is based upon its own fault. It is

not imposed vicariously by virtue of the fault of others.” (City Products Corp. v. Globe Indemnity Co. (1979) 88 Cal.App.3d 31, 36.) “Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation’s employees. But the law does not impute every employee’s malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the officers, directors, or managing agents.” (Cruz v. Home Base (2000) 83 Cal.App.4th 160, 167 [cleaned up].)

Further, if it is proven by clear and convincing evidence, or by a preponderance of the evidence, that a defendant is liable for physical abuse, neglect, or abandonment, and that defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of this abuse, the court shall award reasonable attorneys’ fees and, if applicable, punitive damages under Code of Civil Procedure section 3294. (See Welf. & Inst. Code, § 15657.)

“Abuse of a dependent adult or elder will justify heightened remedies when the cause of action includes facts showing [...] (a) Physical abuse, neglect, financial abuse, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering; or (b) The deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering.” (Berkeley v. Dowds (2007) 152 Cal.App.4th 518, 529.)

Here, Defendant moves to strike the following allegations pertaining to punitive/treble/enhanced damages:

1. Paragraph 66, in its entirety (FAC, p. 17, lines 19–28):

“66. PLAINTIFF also seeks to recover treble damages, RESTORE damages, punitive damages, attorneys’ fees and costs. On information and belief, DEFENDANTS acted with recklessness, oppression, fraud, and/or malice in neglecting and abusing PLAINTIFF, thereby warranting such RESTORE damages. On information and belief, DEFENDANTS knew it was highly probable that DEFENDANTS’ conduct would cause harm to PLAINTIFF, but DEFENDANTS disregarded the risk. On information and belief, DEFENDANTS acted with intent to cause injury and/or DEFENDANTS’ conduct was so despicable and

was done with a willful and knowing disregard of the rights or safety of PLAINTIFF. DEFENDANTS' conduct was vile, base, or contemptible and would be looked down on and despised by reasonable people."

2. Paragraph 67, in its entirety (FAC, p. 18, lines 1–11):

"67. On information and belief, RESTORE and had advanced knowledge of the unfitness of RESTORE's staff and managing agents but employed such agents nevertheless with a knowing disregard of the rights and/or safety of others. Managing agents of RESTORE authorized, ratified, and/or otherwise adopted or approved the wrongful conduct alleged herein. On information and belief, managing agents of RESTORE committed independently wrongful acts as an officer and on behalf of RESTORE. On information and belief, one or more officers, directors, or managing agents of the DEFENDANTS, had advance knowledge of the unfitness of the employee or employees providing the care and services to PLAINTIFF and employed them with a knowing disregard of the rights or safety of others. The employees' conduct was authorized, adopted, and/or ratified by one or more of the officers, directors, or managing agents of the DEFENDANTS."

3. From Paragraph 60 (FAC, p. 15, line 11), the words: "careless, reckless, and".

4. Prayer for Relief, paragraph 3, in its entirety (FAC, p. 20, line 26): "For treble damage as permitted by Civil Code § 3345;".

5. Prayer for Relief, paragraph 4, in its entirety (FAC, p. 20, lines 27–28): "For enhanced damages pursuant to section 15657 of the Welfare and institutions Code, including but not limited to, attorney's fees and costs;"

6. Prayer for Relief, paragraph 6, in its entirety (FAC, p. 21, line 2): "For punitive damages;"

Although Plaintiffs have sufficiently alleged dependent adult neglect, Plaintiffs have not alleged with specificity that officers directors or managing agents of Defendant acted with malice or oppression.

Further, while Plaintiffs have added new allegations about the specific employees at Defendant's facility that treated Hogue, there are no specific facts demonstrating oppression or malice warranting punitive damages. As such, the Court grants Defendant's motion to strike, in part, regarding the punitive damages claim only.

And

to the extent that the Elder Abuse Act provides for treble or enhanced damages, the Court denies Defendant's motion to strike in light of the Court finding that Plaintiffs have alleged a proper claim under the Act as set forth above.

3.

LEAVE TO AMEND

A

plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, *supra*, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that "if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend." (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Plaintiffs

have failed to meet this burden as they do not address whether leave should be granted if either the demurrer is sustained or the motion to strike is granted.

CONCLUSION AND ORDER

For the reasons stated, the Court overrules Defendant's demurrer to the third cause of action.

Further, the Court grants, in part, Defendant's motion to strike Plaintiffs'

claim for punitive damages without leave to amend but without prejudice,
and denies in part Defendant's motion to strike treble or enhanced damages
under the Elder Abuse Act.

Defendant shall file an Answer to the FAC on or before September 14,
2026.

Defendant shall also provide notice of the Court's ruling and file the
notice with a proof of service forthwith.

DATED: August 31, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court

[1] " 'Neglect'
means either of the following: (1) The
negligent failure of any person having the care or custody of an elder or a
dependent adult to exercise that degree of care that a reasonable person in a
like position would exercise. (2) The
negligent failure of an elder or dependent adult to exercise that degree of
self care that a reasonable person in a like position would exercise." (Welf. & Inst. Code, § 16510.57, subd.
(a).)

"Neglect
includes, but is not limited to, all of the following: (1) Failure to assist in personal
hygiene, or in the provision of food, clothing, or shelter. (2) Failure to provide medical care for
physical and mental health needs. A person shall not be deemed neglected or
abused for the sole reason that the person voluntarily relies on treatment by
spiritual means through prayer alone in lieu of medical treatment. (3) Failure to protect from health and
safety hazards. (4) Failure to
prevent malnutrition or dehydration. (5) Substantial
inability or failure of an elder or dependent adult to manage their own
finances. (6) Failure of an elder
or dependent adult to satisfy any of the needs specified in paragraphs (1) to
(5), inclusive, for themselves as a result of poor cognitive functioning,
mental limitation, substance abuse, or chronic poor health." (Welf. & Inst. Code, § 15610.57, subd.

(b.)